

I, Zackariah Bennett, do hereby declare that *Melvina Catherine Manning* did intentionally and negligently cause harm to the plaintiffs on or about June 12th of 2022, combined with the (non-exhaustive) list of complaints below, resulting in current, past, and future damages to the plaintiffs.

1) Defamation of Character

a) Libel per se

1) false allegations of DV crimes committed against my son

I) It is a misdemeanor to intentionally and in bad faith make a false accusation of child abuse or neglect. If the other party seeks a domestic violence protection order that involves these types of false accusations, he or she may face misdemeanor charges. Sentencing can occur under RCW 9A.20.021 and may involve both imprisonment and a fine. [See **King County cause. # 22-2-09380-3 & #08-3-03956-4**]

2) false allegations of DV crimes committed against my mother [petitioner, Melvina C. Manning]

b) Slander per se

1) outrageous accusations Mrs. Manning made about myself, going so far as to falsely claim my Brother witness - he denied any knowledge of the slanderous allegations. This was done in front of my wife and children; words which I daresay would be most inappropriate to repeat on this form. (see RCW 4.36.120)

2) Intentional and/or Reckless Infliction of Emotional Distress

Upon Jessica, our daughter [J.B.], our son [A.B.], and myself by Mrs. Manning's malicious statements to our children, and the horrific allegations she made loudly, publicly, fully aware that ALL-3 of my children were present & paying full attention.

Further trauma was caused directly to my daughter J.B. from a personal attack by Mrs. Manning; the damage of which continues to surface.

3) Fraud

a) fraud in the inducement (discovered 11/25/2022)

b) extrinsic fraud

c) fraud in the factum

d) intrinsic fraud

4) Perjury

Knowingly & intentionally made false sworn statements:

a) on multiple documents in cause #08-3-03956-4

b) on multiple documents in cause #22-2-09380-3

c) in sworn oral testimony in cause #22-2-09380-3

5) Abuse of Process

a) cause #08-3-03956-4

b) cause #22-2-09380-3

6) Intercepting, recording, or divulging private communication [RCW 9.73.030(1)(a-b)]

On or about 08/01/2022 Mr. & Mrs. Manning filed an illegally obtained - and altered - copy of a private communication between my (at the time) wife and myself. [See King County cause. # 22-2-09380-3, sub#49]

She admitted to their crime - under oath - during the hearing on 08/05/2022 [see # 22-2-09380-3, transcript, pg#41, lines 1-3.]

(1) Except as otherwise provided in this chapter, any person who violates RCW 9.73.030 is guilty of a gross misdemeanor. [RCW 9.73.080]

(2) Any person who, directly or by means of a detective agency or any other agent, violates the provisions of this chapter shall be subject to legal action for damages, to be brought by any other person claiming that a violation of this statute has injured his or her business, his or her person, or his or her reputation. A person so injured shall be entitled to actual damages, including mental pain and suffering endured by him or her on account of violation of the provisions of this chapter, or liquidated damages computed at the rate of one hundred dollars a day for each day of violation, not to exceed one thousand dollars, and a reasonable attorney's fee and other costs of litigation. [RCW 9.73.060]

7) Custodial interference in the first degree [RCW 9A.40.060(1)(a)(c)(d)]

In March of 2008 Mrs. Manning left with my son [T.B.] to WA State; this was upon my request for temporary assistance, so I could focus on getting his mother evaluated for drug treatment. In April of 2008, I began requesting Mrs. Manning bring [T.B.] back to Colorado; I was on probation for a 2004 vehicular eluding.

Mrs. Manning made excuses until I told her I was requesting a pass to come get my son, at which point she began abusing the legal system to steal our son. She made false allegations of abandonment & abuse on May 28th to obtain a protection order and temporary custody; then she made false allegations to my Probation Officer preventing me getting a travel pass to attend the hearing. In August of 2008 Mrs. Manning filed a motion for default to obtain custody and a final protection order; this hearing took place while my wife was in drug-treatment, and I was being held pending a probation revocation hearing. She was awarded her requests based SOLELY on a finding of default, without a single allegation even being investigated, let alone proven. [see #08-3-03956-4, sub#28, 12/05/2008]

8) Tortious Interference with Parental Rights and Alienation of Affections.

In Wyatt v. McDermott, 283 Va. 685, 725 S.E.2d 555 (2012), the court concluded that a cause of action for tortious interference with parental rights is consistent with existing common law, and set forth its elements as follows: (1) the complaining parent has a right to establish or maintain a parental or custodial relationship with his/her minor child; (2) a party outside of the relationship between the complaining parent and his/her child intentionally interfered with the complaining parent's parental or custodial relationship with his/her child by removing or detaining the child from returning to the complaining parent, without that parent's consent, or by otherwise preventing the complaining parent from exercising his/her parental or custodial rights; (3) the outside party's intentional interference caused harm to the complaining parent's parental or custodial relationship with his/her child; and (4) damages resulted from such interference. (internal quotation marks omitted)

"In McGrady v. Rosenbaum, 62 Misc.2d 182, 186, 308 N.Y.S.2d 181 (Sup. Ct. 1970), a right to recover for the lost companionship of a child was recognized. The court said: Undoubtedly, ... a parent who has been wrongfully deprived of the company of his child, by interference with such custody, association and companionship, may recover damages from the wrongdoer for the mental anguish and wounded feelings and for the expenses incurred *19 in vindicating the parent's rights to have his child. (Pickle v. Page, 252 N.Y. 474 [169 N.E. 650, 72 A.L.R. 842]; McEntee v. New York Foundling Hosp., 21 Misc.2d 903 [194 N.Y.S.2d 269].)"
~ Strode v. Gleason, 510 P.2d 250 (Wash. Ct. App. 1973)

Mrs. Manning's egregious actions have wreaked havoc upon the course of my life. The confusion, the hurt, the abandonment, the erosion of self worth from constantly wondering endless "why's" that come along with unexplained abandonment by ones mother..

It has been over 15yrs of constant torment - without justification, without giving anyone I know so much as a reason why.. For my son [T.B.] I cannot begin to speculate what he's been told as to why a relationship with myself - as well as all my paternal family line - is forbidden, but the abundant research available suggests it's not in [T.B.]'s best interests.

I am seeking relief for the damages of Mrs. Manning's outrageous and unrelenting actions. The distress and hardship being inflicted upon myself and my family is ongoing, it is heinous, and it must be stopped.

I certify under penalty of perjury under the laws of the state of Washington that all the information provided in this petition and any attachments, is true and correct as of 05/13/2023.

A handwritten signature in black ink, appearing to read 'Zack B', followed by a long horizontal flourish.

Zackariah Bennett
Signed in Goldendale, WA